

*contained words large enough, and there was no expression authorising a narrower construction, or any such disposition of the estate as it was unlikely a testator would make of property not his own (as complicated limitations, or any purpose inconsistent with as probable intention to devise as to let it descend), in such a case the trust estate would pass (b).*

[A residuary devise to trustees upon trust to sell will pass the legal estate in a property which the testator has in his lifetime contracted to sell (c).]

11. **Charge of debts, &c., will exclude the trust estate.**—A charge of debts, legacies, annuities, &c., and *a fortiori*, a direction to *sell*, is considered a sufficient indication of an intention not to include a mere trust estate (d); as where a testator having a trust estate and also estates of his own, gave and devised “all his real estate, whatsoever and wheresoever, to G. T., her heirs and assigns, for ever, charged with 50*l.* to his friend W.,” it was held that the trust estate did not pass (e). And so where a testator gave, devised, and bequeathed to trustees all such real estates as were then vested in him by way of mortgage, the better to enable his said trustees to recover, get in, and receive the principal monies and interest which might be due thereon, it was ruled that the devise extended only to mortgages vested in the testator beneficially, and did not pass the legal estate in fee vested in the testator *upon trust* for another (f).

(b) *Braybroke v. Inskip*, 8 Ves. 436; see *Roe v. Reade*, 8 T. R. 118; *Ex parte Morgan*, 10 Ves. 101; *Langford v. Auger*, 4 Hare, 313.

[(c) *Surrey Commercial Dock Company v. Kerr*, W. N. 1878, p. 163.]

(d) *Roe v. Reade*, 8 T. R. 118; *Duke of Leeds v. Munday*, 3 Ves. 348; *Attorney-General v. Buller*, 5 Ves. 339; *Ex parte Marshall*, 9 Sim. 555; *Ex parte Morgan*, 10 Ves. 101; *Sylvester v. Jarman*, 10 Price, 78; *Re Morley's Trust*, 10 Hare, 293; [*Re Smith's Estate*, 4 Ch. D. 70; *Re Bellis's Trusts*, 5 Ch. D. 504;] see *Wall v. Bright*, 1 J. & W. 494; [see, however, *Re Brown & Sibly's contract*, 3

Ch. D. 156, where V. C. Malins was of opinion that where there was a general devise of real estate charged with debts and legacies, the legal estate in trust property would pass, notwithstanding the charge, which attached only on property which the testator was competent to charge with debts and legacies; and see as to this case *Re Bellis's Trusts*, *ubi sup.*]

(e) *Rackham v. Siddall*, 16 Sim. 297, 1 Mac. & G. 607; *Hope v. Liddell*, 21 Beav. 183; *Life Association of Scotland v. Siddall*, 3 De G. F. & J. 58.

(f) *Ex parte Morgan*, 10 Ves. 101; and see *Sylvester v. Jarman*, 10